

T H E
PUBLIC GENERAL STATUTES.

[9 GEO. 5.]

CHAPTER 1.

An Act to constitute a Commission to inquire into] the position of and conditions prevailing in the Coal Industry. [26th February 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. His Majesty shall have power to appoint Commissioners, Appointment
of Commis-
sioners. consisting of a chairman, who shall be a judge of the Supreme Court, a vice-chairman, and such other persons as His Majesty may think fit, for the purpose of inquiring into the position of, and conditions prevailing in, the coal industry, and in particular as to—

- (a) the wages and hours of work in the various grades of colliery workers, and whether and, if so, to what extent, and by what method, such wages should be increased and hours reduced, regard being had to a reasonable standard of living amongst the colliery workers, and to the effect of such changes on the economic life of the country ;
- (b) any inequalities between different grades of colliery workers as regards wages, hours of work, and other conditions, and whether and, if so, to what extent any of these inequalities are unjustifiable and capable of remedy ;
- (c) the cost of production and distribution in the coal industry, or any industry commonly carried on in connection therewith or as ancillary or incidental thereto, and the general organisation of the coalfield and the industry as a whole ;
- (d) selling prices and profits in the coal industry, or any industry commonly carried on in connection therewith or as ancillary or incidental thereto ;
- (e) the social conditions under which colliery workers carry on their industry ;
- (f) any scheme that may be submitted to or formulated by the Commissioners for the future organisation of the

coal industry, whether on the present basis, or on the basis of joint control, nationalisation, or any other basis ;

- (g) the effect of the present incidence of, and practice in regard to, mining royalties and way-leaves upon the coal industry and the cost of coal, and whether any and what changes in these respects are desirable ;
- (h) the effect of proposals under the above heads upon the development of the coal industry and the economic life of the country.

**Powers of
Commissioners.**

2.—(1) The Commissioners appointed under this Act (in this Act referred to as “the Commissioners”) shall have all such powers, rights, and privileges as are vested in the High Court or in any judge thereof, on the occasion of any action, in respect of the following matters :—

- (a) discovery and production to the Commissioners of documents, and for the purposes thereof the Commissioners shall have power to appoint and employ accountants and other experts to make such investigations and reports as they shall order ; and
- (b) enforcing the attendance of witnesses and examining them on oath, affirmation, or otherwise ; and
- (c) compelling the production of documents ; and
- (d) punishing persons guilty of contempt ;

and a summons signed by one or more of the Commissioners may be substituted for and shall be equivalent to any formal process capable of being issued in any action for enforcing the attendance of witnesses and compelling the production of documents.

(2) A warrant of committal to prison issued for the purpose of enforcing the powers conferred by this section shall specify the prison to which the offender is to be committed, but shall not authorise the imprisonment of an offender for a period exceeding three months.

(3) Persons interested in the inquiry shall not be entitled to appear before the Commissioners by counsel or solicitor unless it appears desirable to the Commissioners to allow any such appearance for special reasons.

(4) The Commissioners may act notwithstanding any vacancy in their number, and three shall be a quorum.

(5) Every document purporting to be an order or other instrument issued by the Commissioners may be authenticated by the signature of any one or more of the Commissioners.

(6) The Commissioners shall have power to appoint committees for the purpose of inquiring into and reporting to the Commissioners on any of the matters referred to the Commissioners under this Act, and any such Committee may include, if the Commissioners think fit, persons other than Commissioners, and the Commissioners may delegate to any such Committee, for the purposes of such inquiry and report, any of the powers conferred on the Commissioners under this Act.

3.—(1) The Commissioners may, in their discretion, refuse to allow the public or any portion of the public to be present at any proceedings of the Commissioners during the hearing of evidence of matters which, but for this Act, could not be disclosed, but, save as aforesaid, the sittings of the Commissioners at which evidence is taken shall be held in public; and a full and complete record in shorthand shall be kept of all evidence taken whether in public or in private. Publicity of
proceedings.

(2) If any person who is present at any proceedings of the Commissioners at which the public or any portion thereof are not allowed to be present discloses, without the authority of the Commissioners, either directly or indirectly, anything that has taken place at those proceedings, he shall be liable to punishment for contempt of court.

4. A person examined as a witness or summoned to produce documents by the Commissioners shall not be excused from producing any document or giving any information on the ground that such document or information is secret or confidential, or is entitled or required to be withheld under section two of the Official Secrets Act, 1911, or under the Coal Mines Control Agreement (Confirmation) Act, 1918, or the agreement thereto scheduled, or otherwise, and section four of the last-mentioned Act shall not apply to the Commissioners or any person concerned in the inquiry. Disclosure of
confidential
information.

1 & 2 Geo. 5.
c. 28.
7 & 8 Geo. 5.
c. 56.

5. Any report of the Commissioners and any minority report shall be laid as soon as may be before both Houses of Parliament, and the Commissioners may, if they think fit, make interim reports, and shall, as soon as practicable, make an interim report on the questions of the wages and hours of work of colliery workers, and the Commissioners may publish, or cause to be published, from time to time, in such manner as they think fit, any information obtained or conclusions arrived at by them as the result or in the course of their inquiry: Reports.

Provided that there shall not be included in any report or publication made or authorised by the Commissioners any information obtained by them in the course of their inquiry as to any individual business (whether carried on by a person, firm or company) which but for this Act could not have been disclosed, nor shall any individual Commissioner or any person concerned in the inquiry disclose any such information.

6. This Act may be cited as the Coal Industry Commission Act, 1919. Short title.